copyright



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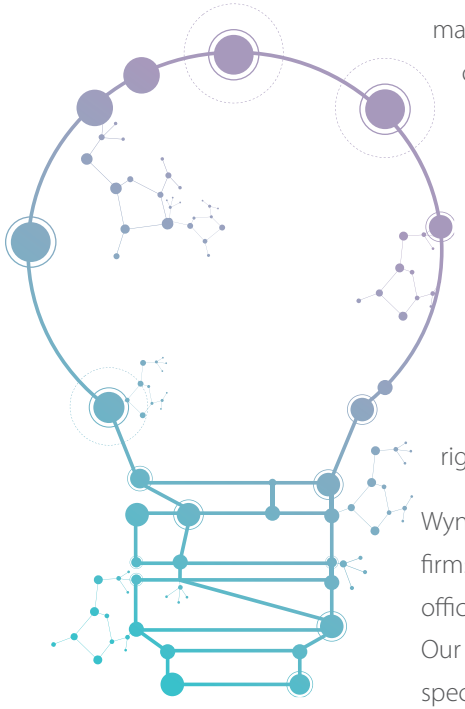


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To ensure that your IP assets are fully protected and exploited, you need the right partner.

WYNNE-JONES IP
own thinking

Your IP is too important not to be done properly

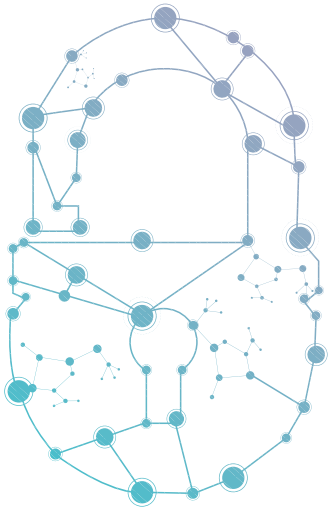


Intellectual Property (IP) rights, such as patents, trade marks, designs and copyright are assets, which can be licensed and sold. Additionally, strong IP rights can be used to stop others from using your IP, thereby protecting your market position. IP rights may also be used to leverage grants and financial assistance. Quite simply, the value of a business can be transformed by obtaining the right IP assets. To ensure that your IP assets are fully protected and exploited, you need the right partner.

Wynne-Jones IP is one of the longest standing firms of patent and trade mark attorneys, with offices in London, Cardiff, Cheltenham and Telford. Our attorneys have a wealth of experience across a spectrum of technical and business sectors, which means that we can match you with an attorney who specialises in IP that is relevant to your field.

What is copyright?

Copyright is an automatic right that exists at the point of creation, and can apply to original literary, dramatic, musical and artistic works, sound recordings, films, broadcasts, software and the typographical arrangement of published editions.



Do I register my copyright?

There is no official system to register copyright in the UK as this is an automatic right. It is however important to keep clear documentary evidence to demonstrate when the work was created and who by as this will be needed if you ever need to enforce your rights.

Why is copyright relevant to my business?

Every business uses material in which copyright exists. Your logo, website and marketing material for example will all have copyright associated with them, as will many other documents produced within your business.

If they are for my business do I own them?

Not necessarily, and this is a common issue. If you commission a third party to produce material or designs for you then unless a written agreement states otherwise they will own the copyright. This is commonplace with items such as photographs, website and marketing material layout and content, brand design, etc. Whilst this may not present an immediate issue, it can cause problems later if your commercial relationship with the provider breaks down, or you need to take action against someone who has copied material. It is therefore advisable to ensure that you have written agreements with such third parties to ensure that the copyright belongs to your business.

How long do rights last?

Copyright has a potentially very long life as the standard duration is the life of the author/creator plus 70 years.

Can I use material that others put on the internet?

No. Just because something has been placed in the public domain it does not mean that it is free for use. If you use such material without the consent of the owner they may be able to sue you for copyright infringement.

Is my product design covered by copyright?

Whilst the design drawings themselves will be subject to copyright, producing articles to design drawings is not an infringement of copyright (although there are special rules relating to "artistic works"). It is recommended that product designs are protected by way of registered design.

Is my copyright protected overseas in the same way?

The UK belongs to a number of international conventions that mean in many overseas countries your copyright will be given the same automatic protection as it is entitled to in the UK. The main international convention governing copyright protection is called the Berne Convention.

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